

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Connors	Team: Squad #09	CCRB Case #: 201703868	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 05/14/2017 9:00 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 11/14/2018	Precinct: 49		
Date/Time CV Reported Tue, 05/16/2017 8:15 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 05/16/2017 8:15 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Pedro Marrero	07894	938940	049 PCT
2. POF Rossiely Guzman	19373	959680	049 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Andrew Jones	00693	928558	049 PCT
2. POM Shamrat Akanda	13319	943809	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Pedro Marrero	Abuse: Police Officer Pedro Marrero entered into § 87(2)(b) in the Bronx.	A . Exonerated
B . POF Rossiely Guzman	Abuse: Police Officer Rossiely Guzman entered into § 87(2)(b) in the Bronx.	B . Exonerated
C . POM Pedro Marrero	Off. Language: Police Officer Pedro Marrero made remarks to § 87(2)(b) based upon her gender § 87(2)(b) in the Bronx.	C . Unsubstantiated

Case Summary

On May 14, 2017, at approximately 9:00 a.m., § 87(2)(b) was with her current ex-boyfriend, § 87(2)(b) inside of § 87(2)(b) basement apartment located at § 87(2)(b) in the Bronx. § 87(2)(b) was on the phone speaking with her mother, when § 87(2)(b) began physically abusing her. § 87(2)(b) repeatedly punched § 87(2)(b) on the side of her head, causing her to fall to the floor. While lying prostrated on the floor, § 87(2)(b) “smushed” a dumbbell against her face. Throughout this assault, § 87(2)(b) remained on the phone with her mother, who told her she was on her way to pick her up.

After an indeterminate amount of time, which § 87(2)(b) could not remember, § 87(2)(b) stopped his assault on § 87(2)(b) to answer a phone call. Approximately five minutes later, § 87(2)(b) heard knocking at the front door of § 87(2)(b) apartment. § 87(2)(b) went to the door and opened it. Standing outside were PO Pedro Marrero and PO Rossiely Guzman of the 49th Precinct. The officers told § 87(2)(b) they had received a 911 call of a screaming child at the location. Before § 87(2)(b) answered, the officers’ observed § 87(2)(b) lying down on the floor inside of the bedroom, and entered into the apartment (**Allegations A and B**).

When one enters into the basement apartment of § 87(2)(b) one enters through a front door assessable from the street. Upon entering the front door, one enters into a short hallway approximately six feet in length. Three feet from the front door entrance, on the left side of the hallway is an “electrical room.” Another three feet down the hallway leads into the “bedroom, which contains one bed, a table, a TV, and closet. § 87(2)(b) was lying prostrated beside the television. Upon entering into the apartment, PO Marrero placed § 87(2)(b) in handcuffs and removed him from the apartment. During this time, PO Andrew Jones of the 49th Precinct also arrived on scene. PO Jones entered into the apartment and joined PO Guzman, who was speaking with § 87(2)(b). PO Guzman, PO Jones and § 87(2)(b) then exited from the apartment.

Once outside, § 87(2)(b) observed two marked police vehicles parked in front of § 87(2)(b). § 87(2)(b) had been placed inside the rearmost vehicle. § 87(2)(b) gave an officer her identification § 87(2)(b) did not remember which officer she had specifically given her identification to) and provided an account of this incident for her Domestic Incident Report against § 87(2)(b). While waiting to receive a copy of this report, § 87(2)(b) overheard PO Marrero and PO Guzman speaking in Spanish. During this conversation, PO Marrero allegedly called § 87(2)(b) a “puta loca” (**Allegation C**). § 87(2)(b) knew this to mean “crazy bitch,” and believed this remark was made about her. § 87(2)(b) responded to the officers, “I know I am a crazy, thank you.” Neither PO Marrero nor PO Guzman responded to § 87(2)(b).

Approximately ten minutes later, Lt. Taso Karathanasis (who at the time was assigned to the 49th Precinct as a sergeant) arrived to verify § 87(2)(b) arrest. During this time, § 87(2)(b)’s mother also arrived on scene. § 87(2)(b) was given her identification back by an officer and instructed to pick up a finalized Domestic Incident Report later that day from the Bronx DA’s office. The officers then entered into their vehicles and drove away with § 87(2)(b) in custody. § 87(2)(b) had no further interactions with these officers (**Board Review 01**).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected to mediation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On July 10, 2017, a request was sent to the New York City Comptroller's Office in regards to any Notice of Claim that may have been filed in regards to this complaint. It will be added to the case file upon receipt (**Board Review 03**).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**Board Review 04**).
- PO Marrero has been a member of service for 12 years and this is his fourth CCRB complaint. In case number 200807448, one force allegation (physical force, three abuse of authority allegations (stop of person, threat of arrest, and refusal to obtain medical treatment), and one offensive language allegation (race) were pleaded against him. Each allegation was closed as either exonerated or unsubstantiated. In case number 201405264, two abuse of authority allegations (gun drawn and property damaged) were pleaded against him. Both allegations were closed as exonerated. In case number 201412635, one force allegation (physical force), one abuse of authority allegation (refusal to obtain medical treatment), and one discourtesy allegation (word) were pleaded against him. Each allegation was closed as unfounded (**Board Review 05**).

Findings and Recommendations

Explanation of Subject Officer Identification

During the CCRB interviews, PO Marrero and PO Guzman acknowledged they were the first unit to respond to a radio run for a 10-34 (assault in progress) at § 87(2)(b) in the Bronx. Upon arriving on scene, the officers knocked on the front door to the basement apartment. § 87(2)(b) answered the door, and upon the officers' observation of § 87(2)(b) lying prostrate on the floor within the apartment (she was visible from the entrance), entered into the apartment § 87(2)(b) (g)

Approximately two hours after the incident, § 87(2)(b) and her mother arrived at the Bronx DA's office to speak with an ADA in regard to this incident. While at the Bronx DA's office, § 87(2)(b) saw the subject officer and learned that he was also the arresting officer. § 87(2)(b) then asked for this officers' name, and it was provided to her as "Marrero." § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Pedro Marrero entered into § 87(2)(b) in the Bronx.

Allegation B – Abuse of Authority: Police Officer Rossiely Guzman entered into § 87(2)(b) in the Bronx.

It is undisputed that PO Marrero and PO Guzman entered into the above location after receiving information via a radio run of an assault in progress. Upon arrival, the officers knocked on the apartment door, which was answered by § 87(2)(b). From the doorway of the apartment entrance, § 87(2)(b) was observed by the officers lying prostrated on the ground, and the officers were

informed by § 87(2)(b) that she had just been assaulted by § 87(2)(b). The officers then entered into the apartment and arrested § 87(2)(b).

People v. Green, 480 N.Y.S.2d 220 states that when the police want to enter a private dwelling to effect an arrest, they are generally required to obtain an arrest warrant, but a warrant is not required if exigent circumstances exist. In determining whether exigent circumstances exist, the courts consider a number of factors, including, inter alia, (1) the gravity or violent nature of the offense, (2) whether the suspect is reasonably believed to be armed, (3) whether there is a reliable basis for believing the person being sought is in the premises in issue, (4) the possibility the suspect will escape, (5) whether there has been a clear demonstration of the existence of probable cause to make an arrest, and (6) the time of day of the entry and whether the entry was peaceful in nature (**Board Review 08**).

People v. McBride, 902 N.Y.S.2d 830 (2010) defined exigent circumstances to include: the gravity or violent nature of the offense with which the suspect is to be charged; whether the suspect is reasonably believed to be armed; a clear showing of probable cause to believe that the suspect committed the crime; strong reason to believe the suspect is in the premises being entered; a likelihood that the suspect committed the crime; strong reason to believe the suspect is in the premises being entered; a likelihood that the suspect will escape if not swiftly apprehended; and the peaceful circumstances of entry (**Board Review 10**).

§ 87(2)(g)

_____. Therefore, it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C – Offensive Language: Police Officer Pedro Marrero made remarks to § 87(2)(b) based upon her gender in front of § 87(2)(b) in the Bronx.

§ 87(2)(b) stated that while waiting in front of the above location to receive a copy of the Domestic Incident Report for this incident, PO Marrero called her a “puta loca” while speaking to his partner, PO Guzman, in Spanish.

PO Marrero acknowledged that he and PO Guzman are fluent Spanish speakers, and regularly communicate in that language while on duty. PO Marrero did not remember speaking to PO Guzman in Spanish during this incident. PO Marrero denied calling § 87(2)(b) a “puta loca” during this incident but remembered that § 87(2)(b) accused the officers of making this remark prior to exiting from inside § 87(2)(b) apartment (**Encl. Board Review 06**).

PO Guzman acknowledged that she and PO Marrero are fluent Spanish speakers, but do not regularly communicate in Spanish while on duty unless necessary. PO Guzman did not remember speaking to PO Marrero in Spanish during this incident. PO Guzman denied hearing PO Marrero refer to § 87(2)(b) as a “puta loca” during this incident but remembered that § 87(2)(b) becoming upset about this remark being said. PO Guzman stated that § 87(2)(b) never specifically accused PO Marrero of making this remark, and that § 87(2)(b) made this allegation only after she had exited from § 87(2)(b) apartment (**Encl. Board Review 07**). PO Jones stated

that he was aware that PO Marrero and PO Guzman were fluent Spanish speakers but did not remember if they communicated in Spanish at any point during this incident (**Board Review 09**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Squad: **9**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date